

		Complaint is not so unintelligible that Defendants cannot reasonably respond. Any ambiguities can be clarified through discovery. (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135; <i>Khoury</i>, 14 Cal.App.4th at 616.) Accordingly, the motion is denied. Defendants are ordered to answer the Complaint within 15 days of the notice of ruling. The ruling renders moot Defendants' motion for leave to file a late demurrer. The October 31, 2025 hearing on that motion is hereby vacated. The court reminds the parties that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, Rule 1.6(15) [defines "parties" as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) The fact that Defendants are self-represented litigants does not relieve them of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are "held to the same standards as attorneys." (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543.) Plaintiff shall give notice of the ruling. CASE MANAGEMENT CONFERENCE
53	Kim v. Son, et al. 30-2024-01423705	Defendants Don Son, M.D. and Don Son M.D., Inc.'s demurrer to Plaintiff Young Ki Kim's Complaint is sustained with 15 days leave to amend. Defendants demur that the Complaint is barred by the one-year statute of limitations set forth in Code of Civil Procedure section 340.5. The limitations period for a medical malpractice claim is three years after the date of injury or one year after the plaintiff discovers or should have discovered the injury, whichever comes first. (Code Civ. Proc., § 340.5.) As the California Supreme Court explained: Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her. As we said in <i>Sanchez</i> and reiterated in <i>Gutierrez</i>, the limitations period begins once

the plaintiff " " 'has notice or information of circumstances to put a reasonable person on inquiry " " ' . . . [T]he limitations period begins once the plaintiff ""has notice or information of circumstances to put a reasonable person on inquiry . . . " " ' A plaintiff need not be aware of the specific "facts" necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.

Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110-1111 (citations omitted).

Plaintiff filed his Complaint on September 9, 2024. He alleges he was injured by Defendants' malpractice during a colonoscopy on September 12, 2022, at which time he was immediately made aware of Defendants' actions and his own injury by Defendant Son's statements and Plaintiff's own pain. That same day, Plaintiff continued to be in great pain while waiting at the ER due to Defendants' failure to require an ambulance. (Complaint, at ¶¶ 20-32.) The Complaint further alleges Defendant Son gave him antibiotics, prescribed to someone else, that gave him an allergic reaction, and he was aware of all this no later than September 24, 2022. (Complaint, at ¶¶ 35-43.)

In October 2022, Defendant Son failed to return Plaintiff's calls seeking medical help. (Complaint, at ¶¶ 50-54.) And by March 2, 2023, Plaintiff learned he had developed a hernia and underwent further surgery. (Complaint, at ¶¶ 58-60.) All of this took place more than a year before Plaintiff filed his Complaint.

In opposition to the demurrer, Plaintiff points to the three-year portion of the statute of limitations. But the Complaint alleges that he discovered his injuries and had, at least, a suspicion of wrongdoing immediately or within days of Defendants' actions he alleges were negligent. Given Plaintiff's allegations, his claims are barred by the statute of limitations. It is unclear whether Plaintiff will be able to cure this deficiency. However, out of an abundance of caution, Plaintiff is granted an opportunity to amend. Accordingly, the demurrer is sustained with 15 days leave to amend.

The ruling on the demurrer renders moot the motion to strike.

The case management conference is continued to October 3, 2025, at 9 am.

		Defendant to give notice of ruling and of the continued case management conference.
54	OC Cars & Credit, Inc. v. XL Funding, LLC, et al. 30-2024-01429967	MOTION FOR APPOINTMENT OF REFEREE Defendants XL Funding, LLC and Joseph Moreira’s motion for the appointment of a judicial referee is granted. Pursuant to Code of Civil Procedure section 638, subdivision (a), “a referee may be appointed upon the agreement of the parties . . . upon the motion of a party to a written contract or lease that provides that any controversy arising therefrom shall be heard by a referee if the court finds a reference agreement exists between the parties: (a) [t]o hear and determine any or all of the issues in an action or proceeding, whether of fact or of law, and to report a statement of decision.” In moving for judicial reference, Defendants refer to the Demand Promissory Note and Security Agreement that the parties entered into on 8/14/20 as part of their financing agreement. It contains a dispute resolution provision providing the following, in relevant part: 11.25 JUDICIAL REFERENCE. IF DEALER'S LOCATION IS WITHIN THE STATE OF CALIFORNIA, THE FOLLOWING PROVISIONS APPLY: <u>IN THE EVENT THAT ANY LEGAL PROCEEDING IS FILED IN A COURT OF THE STATE OF CALIFORNIA (THE "COURT") BY OR AGAINST ANY PARTY IN CONNECTION WITH ANY CONTROVERSY, DISPUTE OR CLAIM DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE TRANSACTIONS CONTEMPLATED BY THIS AGREEMENT (EACH, A "CLAIM") AND THE WAIVER SET FORTH IN THE PRECEDING SECTION 11.24 IS NOT ENFORCEABLE IN SUCH ACTION OR PROCEEDING, DEALER AND XLF HEREBY AGREE AS FOLLOWS:</u> (a) WITH THE EXCEPTION OF THE MATTERS SPECIFIED IN SUBPARAGRAPH B BELOW, <u>ANY CLAIM WILL BE RESOLVED BY A GENERAL REFERENCE PROCEEDING IN ACCORDANCE WITH THE PROVISIONS OF CALIFORNIA CODE OF CIVIL PROCEDURE SECTIONS 638 THROUGH 645.1.</u> (b) ... (c) UPON THE WRITTEN REQUEST OF ANY PARTY, THE PARTIES SHALL SELECT A SINGLE REFEREE, WHO SHALL BE A RETIRED JUDGE OR JUSTICE. IF THE PARTIES DO NOT AGREE UPON A REFEREE WITHIN TEN (10) DAYS OF SUCH WRITTEN REQUEST, THEN ANY PARTY MAY REQUEST THE COURT TO APPOINT A